

2:00 PM

LINE 5

23-CIV-05931 AMANDA NUNEZ, ON BEHALF OF HERSELF AND ON BEHALF OF ALL PERSONS SIMILARLY
SITUATED VS UNIVERSITY HEALTHCARE ALLIANCE

AMANDA NUNEZ, ON BEHALF OF HERSELF AND ON BEHALF OF ALL
PERSONS SIMILARLY SITUATED
UNIVERSITY HEALTHCARE ALLIANCE

ANDREW G. RONAN

RACHEL WINTTERLE

COMPLEX CASE MANAGEMENT CONFERENCE

TENTATIVE RULING:

In light of the court's ruling on the motion for final approval and attorneys' fees, the court takes the case management conference OFF CALENDAR.

2:00 PM

LINE 6

24-CIV-01127

E.T.I. INT'L. VS. KEVIN YIP, ET AL.

E.T.I. INT'L.
KEVIN YIP

BIN LI
MATTHEW D. MARCA

MOTION FOR PROTECTIVE ORDER

TENTATIVE RULING:

The Court orders the parties to APPEAR (Zoom appearances are allowed) on defendants Kevin Yip, Katy Yip, Sau Chun Ng, and Q.S. International Logistics, Inc.'s Motion for Protective Order.

This motion addresses the issue of whether plaintiff E.T.I. Int'l, Inc.'s designation of its alleged trade secrets is sufficient under Code of Civil Procedure section 2019.210.

The parties are to identify whether plaintiff's identification of trade secrets has been submitted in this motion. Exhibit B to the declaration of Matthew D. Marca in support of the protective order, which was not filed under seal, is a document entitled Trade Secrets Identification. Plaintiff, however, states in its reply brief (but not in any declaration) that it provided a separate trade secret designation, under protective order, with extensive information inside it. (Memo in Opp at p. 2 of the brief (counting the caption as page 1).) If Exhibit B to the Marca declaration is the identification, then defendants breached the protective order by filing in the court record a document marked confidential. Plaintiff does not raise any issue of breach of the protective order. No document has been lodged under seal with respect to this motion. Thus, it appears that the court does not have plaintiff's Trade Secret Identification. Without having the document, the court cannot determine if the descriptions are specific enough to satisfy the requirements of Code of Civil Procedure section 2019.210.

Further, defendants' motion lists categories of documents, but no party cites a case specifically dealing with whether that category of document can be considered a trade secret. For example, a customer list can be considered a trade secret. (*Courtesy Temporary Service, Inc. v. Camacho* (1990) 222 Cal.App.3d 1278, 1287.) The court found this case on its own, but it does not have the time or responsibility to search for cases for every category of documents listed in Exhibit B to the Marca declaration. Without such authority, the does not have a framework to analyze whether the information claimed by plaintiff to be trade secrets meet that definition. Defendants cite *Loop AI Labs Inc. v. Gatti* (N.D. Cal. 2016) 195 F.Supp.3d 1107 (*Loop AI*) to argue that general business information is not protected, but the designation in *Loop AI* was more general than some of the designation attached as Exhibit B to the Marca declaration. In *Loop AI*, the plaintiff designated:
